



Dr Rich McLean

By email: [crystalandbarran@gmail.com](mailto:crystalandbarran@gmail.com)

Dear Dr McLean

## **Notice to disclose – decision not to allocate – section 44A(3) of the *Public Interest Disclosure Act 2013* (Cth) – Disclosure made on 24 March 2024**

On 24 March 2024, the Department of Health and Aged Care (the department) received a disclosure from you.

The purpose of this letter is to notify you, in accordance with section 43(2) of the *Public Interest Disclosure Act 2013* (Cth) (the Act), I have decided not to allocate this disclosure for handling by an agency for the reasons outlined below.

### **Reasons for decision**

I consider that there is no reasonable basis on which the disclosure could be considered an internal disclosure as defined in section 26 the Act, because your disclosure was not made to an authorised internal recipient of the agency to which the conduct relates to, or your manager or supervisor.

In making my decision not to allocate your disclosure I have taken into consideration section, 26, 34 and 43 of the Act. Specifically in respect to an internal disclosure, I reference section 34 Item 1(a) and Item 1(b) of the Act that identifies the relevant recipients for internal disclosure. I have also considered section 43(5)(a)(i) of the Act.

I am satisfied from the information that you have provided, and in applying the previously mentioned section of the Act, that conduct disclosed in your email correspondence does not relate to the Commonwealth Department of Health and Aged Care.

### **Other courses of action that may be available to you**

There may be other courses of action available to you either internally through the agency that you worked for, or under other laws of the Commonwealth in relation to the concerns raised in your disclosure. If you are concerned about a breach of human rights, you may wish to consider contacting the Australian Human Rights Commission (AHRC).

Website: [humanrights.gov.au](http://humanrights.gov.au)

Telephone: 1300 656 419



Yours sincerely

A stylized, handwritten signature in black ink.

Frankie Lum  
Authorised Officer

7 April 2024